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Law-536: C.P.C (Civil Procedure Code & Limitation Act) (Paper – I) 5th Semester (Syllabus)

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UNIT – I

1. DEFINITIONS: DECREE, ORDER, JUDGMENT, PRELIMINARY DECREE, FINAL DECREE AND MESNE PROFITS

1. Decree

According to **Section 2(2) of the Civil Procedure Code, 1908**, a **decree** is the formal expression of an adjudication which conclusively determines the rights of the parties regarding all or any of the matters in controversy in a suit.

A decree may be:

- Preliminary, or
- Final.

A decree must arise from an adjudication in a suit and conclusively determine the rights of the parties.

Example

A court passes a decision determining the shares of parties in a partition suit. Such decision may amount to a decree.

2. Order

According to **Section 2(14) CPC**, an **order** means the formal expression of any decision of a civil court which is **not a decree**.

Thus, every decree is based on an adjudication, but every order is not a decree.

Orders generally deal with procedural or other matters arising during the course of a suit.

Example

An order granting or refusing a temporary injunction is an order and not a decree.

3. Judgment

According to **Section 2(9) CPC**, a **judgment** means the statement given by the Judge on the grounds of a decree or order.

Thus:

Judgment contains the reasons → Decree or Order is the formal expression of the decision.

A judgment explains why the court has reached a particular conclusion.

4. Preliminary Decree

A **preliminary decree** determines the rights and liabilities of the parties but does not completely dispose of the suit.

Further proceedings are required before the suit can be finally concluded.

Example

In a partition suit, the court may first determine the respective shares of the parties. This is generally a preliminary decree. A further proceeding may then be required for actual division of the property.

Important Case

Phoolchand v. Gopal Lal (1967) – The Supreme Court held that more than one preliminary decree may be passed in a suit if circumstances require it.

5. Final Decree

A **final decree** completely and finally disposes of the suit and leaves nothing further to be decided by the court regarding the matters in controversy.

In a partition suit, after determining the shares through a preliminary decree, the actual division of property may be made through a final decree.

Difference

- **Preliminary Decree:** Determines rights but further proceedings are necessary.
- **Final Decree:** Completely disposes of the suit.

6. Mesne Profits

According to **Section 2(12) CPC**, **mesne profits** are the profits which a person in wrongful possession of property actually received or might, with ordinary diligence, have received from such property.

It also includes **interest on such profits**.

However, mesne profits do not include profits earned because of improvements made by the person in wrongful possession.

Example

A wrongfully occupies B's house and earns rent from it. The amount which A actually received, or could reasonably have received, may be claimed by B as mesne profits.

Important Case

Lucy Kochuvareed v. P. Mariappa Gounder (1979) – The Supreme Court explained the principle relating to the determination of mesne profits and compensation for wrongful possession.

Quick Difference

Term	Meaning
Judgment	Reasons given by the Judge for a decision
Decree	Formal expression conclusively determining rights in a suit
Order	Formal expression of a decision which is not a decree
Preliminary Decree	Determines rights but further proceedings are required
Final Decree	Completely disposes of the suit
Mesne Profits	Profits received or reasonably obtainable from wrongful possession

Conclusion

These definitions are fundamental to the Civil Procedure Code. A **judgment** contains the reasons of the court, while a **decree** or **order** formally expresses its decision. A decree may be preliminary or final, and **mesne profits** provide compensation for the benefits obtained by a person who wrongfully possesses another person's property.

2. JURISDICTION OF CIVIL COURTS

Introduction

Jurisdiction means the legal authority or power of a court to hear, try and decide a case. A court can pass a valid judgment only when it has jurisdiction over the matter brought before it.

The provisions relating to the jurisdiction of civil courts are mainly contained in the **Civil Procedure Code, 1908 (CPC)**.

The general principle is that:

Every civil court has jurisdiction to try all suits of a civil nature unless its jurisdiction is expressly or impliedly barred.

This principle is contained in **Section 9 of the CPC**.

1. Jurisdiction under Section 9 CPC

Section 9 provides that civil courts shall have jurisdiction to try **all suits of a civil nature**, except those of which their cognizance is expressly or impliedly barred.

Thus, two important conditions are:

1. The suit must be of a **civil nature**; and
2. The jurisdiction of the civil court must not be expressly or impliedly barred.

Meaning of “Suit of Civil Nature”

A suit is of a civil nature when it involves the determination of a civil right or obligation.

Examples include disputes relating to:

- Property;
- Contracts;
- Money;

- Possession;
- Marriage and other civil rights;
- Rights to office; and
- Other private rights.

A civil court normally has jurisdiction where the principal question concerns the enforcement or determination of a civil right.

2. Express and Implied Bar of Jurisdiction

(A) Express Bar

The jurisdiction of a civil court is **expressly barred** when a statute clearly states that civil courts cannot entertain certain matters.

For example, a special statute may provide that a particular tribunal or authority shall exclusively decide disputes arising under that statute.

(B) Implied Bar

A bar may also arise by necessary implication.

Where a special statute creates a special right and provides a complete mechanism or tribunal for deciding disputes, the jurisdiction of ordinary civil courts may be impliedly excluded.

However, exclusion of civil court jurisdiction is **not easily presumed**.

Important Case

Dhulabhai v. State of Madhya Pradesh (1968)

The Supreme Court laid down important principles regarding exclusion of the jurisdiction of civil courts.

The Court held that exclusion of civil court jurisdiction must be clearly established, either expressly or by necessary implication.

3. Types of Jurisdiction

Jurisdiction may be broadly classified into the following categories:

(i) Pecuniary Jurisdiction

Pecuniary jurisdiction means the authority of a court to hear cases depending upon the monetary value of the subject matter or claim.

Different courts may have jurisdiction over suits of different monetary values according to the law applicable to that court.

A suit must therefore be filed before a court having the necessary pecuniary jurisdiction.

(ii) Territorial or Local Jurisdiction

Territorial jurisdiction means the geographical area within which a court can exercise its authority.

The provisions relating to the place of suing are mainly contained in **Sections 15 to 20 CPC**.

For example:

- Suits relating to immovable property are generally filed where the property is situated.
- Other suits may generally be filed where the defendant resides or carries on business, or where the cause of action wholly or partly arises.

(iii) Jurisdiction as to Subject Matter

A court must have authority to deal with the particular **subject matter** of the dispute.

For example, a civil court may not have jurisdiction over matters which are exclusively assigned to a special tribunal by a statute.

Jurisdiction over the subject matter is fundamental, and a decree passed without such jurisdiction may be treated as invalid.

4. Sections 15–20: Place of Suing

Section 15 – Court of Lowest Grade

Every suit should be instituted in the court of the **lowest grade competent to try it**.

The purpose is to ensure proper distribution of judicial work.

Sections 16–18 – Suits Relating to Immovable Property

Suits relating to immovable property are generally instituted in the court within whose local jurisdiction the property is situated.

Where property is situated within the jurisdiction of different courts, special rules may apply.

Section 19 – Suits for Wrongs to Person or Movable Property

Where compensation is claimed for a wrong done to a person or movable property, the suit may generally be instituted either:

- Where the wrong was committed; or
- Where the defendant resides or carries on business.

Section 20 – Other Suits

Other suits may generally be instituted where:

1. The defendant resides, carries on business or personally works for gain; or
2. The cause of action wholly or partly arises.

This section is particularly important in suits relating to contracts and other civil disputes.

5. Objection as to Jurisdiction

An objection regarding the **place of suing** or **pecuniary jurisdiction** should generally be raised at the earliest possible opportunity.

Under **Section 21 CPC**, an appellate or revisional court will not ordinarily allow such an objection unless:

1. The objection was raised at the earliest opportunity; and
2. There has been a consequent failure of justice.

However, lack of **subject-matter jurisdiction** is more fundamental and may affect the validity of the entire proceedings.

Important Case Laws

Kiran Singh v. Chaman Paswan (1954)

The Supreme Court held that a defect of jurisdiction, whether pecuniary or territorial, may render a decision vulnerable. However, objections relating to jurisdiction are also governed by the statutory rules regarding waiver and failure of justice.

The case is particularly important for understanding the consequences of lack of jurisdiction.

Dhulabhai v. State of Madhya Pradesh (1968)

The Supreme Court laid down important principles for determining when the jurisdiction of civil courts is excluded by a special statute.

Principle: The jurisdiction of civil courts is presumed, and its exclusion must be clearly established.

Hatti v. Sunder Singh (1971)

The Supreme Court held that where a statute creates special rights and provides a special remedy through a designated authority, the jurisdiction of ordinary civil courts may be excluded.

Conclusion

Jurisdiction is the legal authority of a court to hear and decide a dispute. Under **Section 9 CPC**, civil courts have jurisdiction to try all suits of a civil nature unless their jurisdiction is expressly or impliedly barred.

The three important types of jurisdiction are:

1. **Pecuniary Jurisdiction** – based on the monetary value of the suit;
2. **Territorial Jurisdiction** – based on geographical limits and place of suing; and
3. **Subject-Matter Jurisdiction** – based on the nature of the dispute.

Therefore, before instituting a suit, it is essential to determine whether the court has the necessary **subject-matter, territorial and pecuniary jurisdiction**.

3. RES SUB JUDICE, RES JUDICATA AND FOREIGN JUDGMENT WHEN CONCLUSIVE

1. Res Sub Judice – Section 10 CPC

Res Sub Judice means that a matter is **already under consideration by a competent court**.

Under **Section 10 CPC**, when a previously instituted suit involving the same matter in issue between the same parties is pending before a competent court, the trial of the subsequently instituted suit shall be stayed.

Conditions

- There must be two suits;
- The matter in issue must be directly and substantially the same;
- The parties must be the same or claiming under the same title;
- The previously instituted suit must be pending before a competent court.

Purpose: To avoid parallel trials and conflicting decisions.

2. Res Judicata – Section 11 CPC

Res Judicata means “**a matter already adjudicated.**”

Under **Section 11 CPC**, once a competent court has finally decided a matter, the same matter cannot generally be litigated again between the same parties.

Conditions

- The matter must have been directly and substantially in issue;
- It must have been decided in a former suit;
- The former court must have been competent;
- The parties must be the same or claiming under the same title;
- The matter must have been finally decided.

Important Case

Satyadhyan Ghosal v. Deorajin Debi (1960) – The Supreme Court explained that the doctrine of res judicata is based on the principle that there must be an end to litigation.

Difference between Res Sub Judice and Res Judicata

Basis	Res Sub Judice	Res Judicata
Section	Section 10 CPC	Section 11 CPC
Meaning	Matter pending before a court	Matter already decided
Effect	Stay of subsequent suit	Bar against a fresh suit
Object	Avoid parallel proceedings	Prevent re-litigation

3. Foreign Judgment When Conclusive – Section 13 CPC

A **foreign judgment** means the judgment of a foreign court. Under **Section 13 CPC**, a foreign judgment is conclusive regarding matters directly adjudicated between the parties, **unless it falls under any of the following exceptions**:

1. It was not pronounced by a court of competent jurisdiction;
2. It was not given on the merits of the case;
3. It is based on an incorrect view of international law or refuses to recognize applicable Indian law;
4. The proceedings were opposed to natural justice;
5. The judgment was obtained by fraud; or
6. It sustains a claim founded on a breach of any law in force in India.

Important Case

Y. Narasimha Rao v. Y. Venkata Lakshmi (1991) – The Supreme Court laid down important principles regarding the recognition of foreign judgments, particularly foreign matrimonial decrees.

Conclusion

Res Sub Judice prevents simultaneous trials of the same matter, while **Res Judicata** prevents the same dispute from being decided again. A **foreign judgment** is conclusive in India under **Section 13 CPC**, subject to the six statutory exceptions.

4. PLACE OF SUING

The provisions relating to the **place of suing** are mainly contained in **Sections 15 to 20 of the CPC**. These provisions determine the proper court in which a civil suit should be instituted.

Section 15 – Court of Lowest Grade

Every suit shall be instituted in the **court of the lowest grade competent to try it**. The object is the proper distribution of judicial work.

Sections 16–18 – Suits relating to Immovable Property

A suit relating to immovable property is generally instituted in the court within whose local jurisdiction the property is situated.

Section 19 – Wrong to Person or Movable Property

A suit for compensation for a wrong done to a person or movable property may generally be filed either:

- Where the wrong was committed; or
- Where the defendant resides, carries on business, or personally works for gain.

Section 20 – Other Suits

Other suits may generally be instituted where:

- The defendant resides or carries on business; or
- The cause of action wholly or partly arises.

5. SERVICE OF SUMMONS

A **summons** is an order issued by the court requiring the defendant to appear and answer the claim made by the plaintiff.

The provisions relating to summons are mainly contained in **Sections 27–29 and Order V of the CPC**.

The summons must generally be served upon the defendant through the prescribed mode, such as:

- Personal service;
- Service through an authorized agent;
- Service by post or other legally permitted electronic means; or
- **Substituted service**, where ordinary service is not possible.

Under **Order V Rule 20**, substituted service may be ordered by the court where the defendant is avoiding service or summons cannot be served in the ordinary manner.

The purpose of service of summons is to ensure compliance with the principle of **natural justice**, particularly *audi alteram partem*—no person should be condemned without being given an opportunity of being heard.

6. FRAMING OF ISSUES

The provisions relating to framing of issues are contained mainly in **Order XIV CPC**.

An **issue** is a material proposition of fact or law which is affirmed by one party and denied by the other.

Issues are framed by the court after examining the pleadings and determining the points on which the parties are actually in dispute.

There are two types of issues:

1. **Issues of Fact**; and
2. **Issues of Law**.

The object of framing issues is to:

- Identify the real points of dispute;
- Define the scope of the trial;
- Guide the parties in producing evidence; and
- Enable the court to decide the case properly.

Important Case

Makhan Lal Bangal v. Manas Bhunia (2001) – The Supreme Court emphasized the importance of proper framing of issues for a fair and effective trial.

7. DISCOVERY

Discovery is a pre-trial procedure through which a party obtains information or documents relevant to the matters in dispute from the opposite party.

The provisions relating to discovery and inspection are mainly contained in **Order XI of the CPC**.

Discovery may relate to:

1. **Discovery by interrogatories** – questions delivered by one party to the other with the permission of the court; and
2. **Discovery and inspection of documents** – disclosure and inspection of relevant documents in the possession or control of a party.

The court may permit discovery when it is necessary for the fair disposal of the suit or for saving costs and time.

The main object of discovery is to:

- Obtain relevant evidence;
- Prevent surprise during trial;
- Narrow down the issues in dispute; and
- Ensure a fair and speedy disposal of the case.

However, discovery cannot be used for a **fishing inquiry** or to obtain irrelevant or privileged information.

Conclusion

The provisions relating to **place of suing, service of summons, framing of issues and discovery** are important procedural stages of a civil suit. They ensure that the suit is filed before the proper court, the defendant receives notice, the actual disputes are clearly identified, and relevant information and documents are disclosed before trial.

UNIT – II

1. APPEARANCE OF PARTIES: DISMISSAL IN DEFAULT, EX PARTE DECREE AND SETTING ASIDE OF EX PARTE DECREE

Introduction

The provisions relating to the **appearance of parties** are mainly contained in **Order IX of the Civil Procedure Code, 1908**. After a suit is instituted and summons is issued, the parties are required to appear before the court on the date fixed for hearing.

The consequences of non-appearance differ depending upon whether the plaintiff, defendant, or both parties fail to appear.

1. Appearance of Parties

Under **Order IX Rule 1**, the parties to a suit must appear on the day fixed in the summons and may appear either:

- Personally; or
- Through a duly authorized pleader or representative, where permitted by law.

The court then proceeds according to the presence or absence of the parties.

2. Dismissal in Default

(A) Where Both Parties are Absent – Order IX Rule 3

Where neither the plaintiff nor the defendant appears when the suit is called for hearing, the court may dismiss the suit.

However, under **Order IX Rule 4**, the plaintiff may:

- Bring a fresh suit, subject to the law of limitation; or
- Apply for an order to set aside the dismissal by showing sufficient cause for non-appearance.

(B) Where Plaintiff is Absent but Defendant is Present – Order IX Rule 8

Where the defendant appears but the plaintiff does not appear, the court shall generally dismiss the suit.

Under **Order IX Rule 9**, the plaintiff may apply to have the dismissal set aside by showing **sufficient cause** for non-appearance.

If the application is allowed, the suit is restored.

A fresh suit on the same cause of action is generally barred where the suit has been dismissed under Rule 8, subject to the remedy provided by Rule 9.

3. Ex Parte Decree

An **ex parte decree** is a decree passed against a defendant in his absence.

Under **Order IX Rule 6**, where the plaintiff appears but the defendant does not appear after the summons has been duly served, the court may proceed **ex parte** and decide the suit on the basis of the plaintiff's evidence.

However, an ex parte decree can be passed only when the defendant was properly served or when the court is legally satisfied that service was sufficient.

An ex parte decree is a valid decree unless it is set aside by a competent court.

4. Setting Aside an Ex Parte Decree

The main provision is **Order IX Rule 13 CPC**.

A defendant against whom an ex parte decree has been passed may apply to the court for setting aside the decree.

The court may set aside the ex parte decree if the defendant proves either:

(i) Summons was not duly served

If the defendant did not receive proper notice of the suit because summons was not duly served, the ex parte decree may be set aside.

(ii) Sufficient Cause for Non-Appearance

Even where summons was duly served, the defendant may obtain relief by showing **sufficient cause** for not appearing when the suit was called for hearing.

The expression “sufficient cause” depends upon the facts and circumstances of each case.

Important Case Laws

Arjun Singh v. Mohindra Kumar (1964)

The Supreme Court explained the scope of proceedings relating to an ex parte order and emphasized that the defendant must establish sufficient grounds where required under the CPC.

Parimal v. Veena (2011)

The Supreme Court held that “sufficient cause” must be genuine and adequate. A party seeking to set aside an ex parte decree must show that the absence was not due to negligence or deliberate inaction.

G.P. Srivastava v. R.K. Raizada (2000)

The Supreme Court observed that while considering “sufficient cause,” the court should adopt a reasonable approach and examine whether the absence was bona fide.

Remedies Against an Ex Parte Decree

A defendant may generally have the following remedies:

1. **Application under Order IX Rule 13 CPC** for setting aside the decree;
2. **Appeal under Section 96(2) CPC** against the ex parte decree; and
3. Other remedies available according to the circumstances and law.

Conclusion

Order IX CPC regulates the consequences of non-appearance of parties. If the plaintiff fails to appear, the suit may be dismissed for default. If the defendant fails to appear despite proper service of summons, the court may proceed ex parte and pass an **ex parte decree**.

An ex parte decree may be set aside under **Order IX Rule 13** where the defendant proves that the summons was not duly served or that there was sufficient cause for non-appearance.

2. INTERIM ORDERS: COMMISSIONS, TEMPORARY INJUNCTION, RECEIVER, ARREST BEFORE JUDGMENT AND ATTACHMENT BEFORE JUDGMENT

Introduction

An **interim order** is a temporary order passed by a court during the pendency of a suit. Its purpose is to protect the rights of the parties, preserve the subject matter of the suit and ensure that the final decree does not become ineffective.

Important provisions relating to such reliefs are found in the **Civil Procedure Code, 1908**.

1. Commissions

The provisions relating to commissions are contained in **Sections 75–78 and Order XXVI CPC**.

A court may issue a commission for purposes such as:

- Examination of witnesses;
- Local investigation;
- Examination or adjustment of accounts;
- Partition of property;
- Scientific, technical or expert investigation; and
- Other purposes authorized by law.

The person appointed to execute the commission is called a **Commissioner**.

Object

The main purpose of issuing a commission is to assist the court in properly determining the matters in dispute, particularly where direct investigation or examination by the court is difficult.

2. Temporary Injunction

The provisions relating to temporary injunctions are mainly contained in **Sections 94 and 95 and Order XXXIX Rules 1 and 2 CPC**.

A **temporary injunction** is an order restraining a party from doing a particular act until the disposal of the suit or until further orders of the court.

It may be granted, for example, to prevent:

- Waste, damage or alienation of property;
- Breach of contract;
- Injury to the plaintiff; or

- Disposal of disputed property.

Essential Conditions

The court generally considers three important principles:

(i) Prima Facie Case

The applicant must show that there is a serious question requiring trial and that the claim has a prima facie basis.

(ii) Balance of Convenience

The court considers which party would suffer greater inconvenience if the injunction is granted or refused.

(iii) Irreparable Injury

The applicant must show that refusal of injunction may cause injury which cannot be adequately compensated by damages.

Important Case

Dalpat Kumar v. Prahlad Singh (1992) – The Supreme Court emphasized the three essential requirements of a temporary injunction: **prima facie case, balance of convenience and irreparable injury**.

3. Receiver

The provisions relating to the appointment of a receiver are contained in **Order XL CPC**.

A **receiver** is an impartial person appointed by the court to take possession, manage, protect or preserve property which is the subject matter of a suit.

The receiver acts as an officer of the court and must act impartially.

The court may appoint a receiver when it appears to be **just and convenient**.

Powers of Receiver

Subject to the directions of the court, a receiver may:

- Take possession of property;
- Manage and protect the property;
- Collect rents and profits;
- Apply and dispose of such amounts as directed by the court.

4. Arrest Before Judgment

The provisions relating to arrest before judgment are contained in **Section 94 and Order XXXVIII Rules 1–4 CPC**.

In exceptional cases, the court may order the arrest of a defendant before the final judgment.

This power may be exercised where the court is satisfied that the defendant intends to:

- Abscond or leave the jurisdiction of the court; or
- Dispose of property or otherwise obstruct or delay the execution of a possible decree.

The object is **not to punish the defendant**, but to prevent the defendant from defeating the execution of a future decree.

Because personal liberty is involved, this power must be exercised cautiously.

5. Attachment Before Judgment

The provisions relating to attachment before judgment are mainly contained in **Order XXXVIII Rules 5–13 CPC**.

The court may attach the property of a defendant before passing the final judgment where there is a real possibility that the defendant may dispose of or remove the property with the intention of obstructing or delaying the execution of a future decree.

Essential Conditions

The plaintiff must show that:

1. There is a prima facie claim; and
2. The defendant is about to dispose of or remove property with the intention of defeating or obstructing the execution of a possible decree.

The court may direct the defendant to furnish security or show cause why the property should not be attached.

Important Principle

Attachment before judgment is an extraordinary remedy and should not be granted merely because the plaintiff fears that recovery may become difficult.

Important Case

Raman Tech. & Process Engg. Co. v. Solanki Traders (2008) – The Supreme Court held that the power of attachment before judgment should be exercised with great care and caution and should not be used to convert an unsecured debt into a secured debt.

Conclusion

Interim orders provide temporary protection during the pendency of a civil suit.

- **Commission** helps the court in investigation or examination.
- **Temporary injunction** prevents threatened injury or wrongful acts.
- **Receiver** protects and manages disputed property.
- **Arrest before judgment** prevents the defendant from defeating execution in exceptional cases.
- **Attachment before judgment** protects the plaintiff where the defendant may dispose of property to obstruct execution.

These remedies ensure that the final decision of the court remains effective and meaningful.

3. SUITS OF SPECIAL NATURE

The Civil Procedure Code, 1908 provides special procedures for certain types of suits. Important suits of special nature include **Representative Suits, Interpleader Suits, Suits by Indigent Persons, Suits by or against the Government, and Suits relating to Public Nuisance.**

1. Representative Suit

The provisions relating to representative suits are contained in **Order I Rule 8 CPC.**

Where numerous persons have the **same interest** in a suit, one or more persons may, with the permission of the court, sue or defend on behalf of all persons having such interest.

Conditions

1. There must be numerous persons;
2. They must have the same interest in the suit;
3. Permission of the court must be obtained; and

4. Notice must be given to all persons interested.

The decision passed in such a suit is generally binding upon all persons represented in the suit.

Example

Where a large number of residents have a common grievance against an illegal action, one or more persons may institute a representative suit on behalf of all.

2. Interpleader Suit

The provisions relating to an interpleader suit are contained in **Section 88 and Order XXXV CPC**.

An **interpleader suit** is filed by a person who possesses property or money but does not claim any interest in it and faces competing claims from two or more persons.

The plaintiff asks the court to determine which defendant is legally entitled to the property or money.

Conditions

- Two or more persons must make adverse claims;
- The plaintiff must have no interest in the subject matter except charges or costs;
- There must be no pending suit in which the rights of the claimants can properly be decided.

Example

A person holds money claimed by both A and B. The holder may file an interpleader suit and ask the court to decide whether A or B is entitled to the money.

3. Suit by an Indigent Person

The provisions relating to suits by indigent persons are contained in **Order XXXIII CPC**.

An **indigent person** is a person who does not possess sufficient means to pay the prescribed court fee.

Such a person may institute a suit without initially paying the court fee, subject to the conditions provided under Order XXXIII.

The object of this provision is to ensure that **poverty does not prevent a person from seeking justice**.

The court may reject an application where the requirements of Order XXXIII are not satisfied or where the claim does not disclose a valid cause of action.

Important Case

Union Bank of India v. Khader International Construction (2001) – The Supreme Court emphasized the purpose of provisions enabling persons without sufficient means to approach the court.

4. Suit by or Against the Government

The provisions relating to suits involving the Government are contained mainly in **Sections 79–82 CPC**.

Section 79

A suit by or against the Government must be instituted in the name of:

- **Union of India**, in the case of the Central Government; or
- **The State**, in the case of a State Government.

Section 80 – Notice

Generally, a **two-month prior notice** must be given before instituting a suit against the Government or a public officer for an act done in an official capacity.

However, under **Section 80(2)**, a suit for urgent or immediate relief may be instituted with the permission of the court without serving prior notice.

Important Case

State of A.P. v. Pioneer Builders (2006) – The Supreme Court reiterated the importance of compliance with the requirements of Section 80 CPC.

5. Suit in Case of Public Nuisance

The provisions relating to suits concerning public nuisance are contained in **Section 91 CPC**.

A suit may be instituted in respect of a public nuisance or other wrongful act affecting the public by:

1. The **Advocate-General**; or
2. Two or more persons, with the permission of the court.

Such a suit may be filed even where the persons instituting it have not suffered any special personal damage.

Object

The purpose of Section 91 is to protect **public rights and interests** where a wrongful act affects the community or a considerable section of the public.

Example

Where a person unlawfully obstructs a public road or causes an obstruction affecting the general public, appropriate proceedings may be initiated under Section 91 CPC.

Quick Summary

Type of Suit	Main Provision	Purpose
Representative Suit	Order I Rule 8	Common interest of numerous persons
Interpleader Suit	Section 88, Order XXXV	Rival claims over the same property or money
Suit by Indigent Person	Order XXXIII	Access to justice without immediate payment of court fee
Suit by/against Government	Sections 79–82	Procedure for litigation involving Government
Public Nuisance	Section 91	Protection of public rights

Conclusion

These special provisions of the CPC provide separate procedures for particular situations. They ensure effective access to justice, avoid multiplicity of proceedings, protect public interests, and regulate suits involving the Government or competing claims over property.

UNIT – III

1. APPEAL, FIRST AND SECOND APPEAL, REFERENCE, REVIEW AND REVISION

Introduction

The Civil Procedure Code, 1908 provides various remedies against judicial decisions. A party who is dissatisfied with a decree or order may challenge it through an **appeal, reference, review or revision**, subject to the conditions prescribed by law.

These remedies are important for correcting errors and ensuring proper administration of justice.

1. Appeal

An **appeal** is a legal remedy by which a higher court is requested to examine the correctness of a decree or order passed by a subordinate court.

An appeal is not an inherent right. It is a **statutory right** and can be exercised only when provided by law.

The main provisions relating to appeals are contained in:

- **Sections 96–99A CPC** – Appeals from original decrees;
- **Sections 100–103 CPC** – Second appeals; and
- **Sections 104–108 CPC** – Appeals from orders.

2. First Appeal

A **first appeal** is generally an appeal from a decree passed by a court exercising original jurisdiction.

Under **Section 96 CPC**, an appeal lies from every decree passed by a court exercising original jurisdiction, except where expressly barred.

A first appeal is generally available on:

- Questions of fact;
- Questions of law; and
- Questions involving both fact and law.

Thus, the appellate court has wide powers to examine the findings of the trial court.

Important Point

Under **Section 96(2)**, an appeal may also lie against an **ex parte decree**.

However, no appeal generally lies from a **consent decree**, subject to legal exceptions.

Important Case

Santosh Hazari v. Purushottam Tiwari (2001) – The Supreme Court emphasized the duty of the appellate court to properly examine the issues and give reasons while deciding a first appeal.

3. Second Appeal

A **second appeal** lies under **Section 100 CPC** from an appellate decree.

A second appeal can be filed before the **High Court** only when the case involves a **substantial question of law**.

Therefore, unlike a first appeal, a second appeal cannot normally be filed merely to challenge findings of fact.

Conditions

1. There must be a decree passed in first appeal;
2. The case must involve a substantial question of law; and
3. The High Court must formulate that substantial question of law.

Important Case

Kondiba Dagadu Kadam v. Savitribai Sopan Gujar (1999) – The Supreme Court held that the High Court cannot interfere with concurrent findings of fact merely because another view is possible. Interference in second appeal is primarily limited to substantial questions of law.

Difference between First and Second Appeal

Basis	First Appeal	Second Appeal
Provision	Section 96 CPC	Section 100 CPC
Court	Appropriate appellate court	High Court
Questions	Facts and law	Substantial question of law
Scope	Wider	Limited

4. Reference

The provisions relating to **reference** are contained in **Section 113 and Order XLVI CPC**.

A subordinate court may refer a question of law to the High Court for its opinion where:

- The case involves an important question of law; and
- The conditions prescribed by Section 113 and Order XLVI are satisfied.

The purpose of reference is to obtain the opinion of the High Court and avoid an incorrect interpretation of law by the subordinate court.

A reference is generally made by the **subordinate court**, unlike an appeal, which is initiated by an aggrieved party.

5. Review

The provisions relating to review are contained in **Section 114 and Order XLVII CPC**.

A **review** means reconsideration of a judgment or order by the **same court** which passed it.

Review may be sought on grounds such as:

1. Discovery of new and important matter or evidence which could not be produced earlier despite due diligence;
2. Mistake or error apparent on the face of the record; or
3. Any other sufficient reason.

A review is not an appeal in disguise. It cannot normally be used merely because the party believes that another view is possible.

Important Case

Lily Thomas v. Union of India (2000) – The Supreme Court held that the power of review is limited and cannot be used as a substitute for an appeal.

6. Revision

The power of revision is contained in **Section 115 CPC**.

The **High Court** may exercise revisional jurisdiction where a subordinate court has:

1. Exercised jurisdiction not vested in it by law;
2. Failed to exercise jurisdiction vested in it; or
3. Acted illegally or with material irregularity in exercising its jurisdiction.

Revision is a discretionary and supervisory jurisdiction. It is mainly concerned with **jurisdictional errors** and is narrower than an appeal.

The High Court does not normally re-examine evidence merely because another view is possible.

Important Case

Shiv Shakti Coop. Housing Society v. Swaraj Developers (2003) – The Supreme Court explained the limited scope of revisional jurisdiction under Section 115 CPC.

Difference between Appeal, Review and Revision

Basis	Appeal	Review	Revision
Decided by	Higher Court	Same Court	High Court
Purpose	Re-examination of decree/order	Correction of limited errors	Correction of jurisdictional errors
Scope	Relatively wide	Very limited	Limited and supervisory
Main Provisions	Sections 96, 100 etc.	Section 114, Order XLVII	Section 115

Conclusion

The CPC provides different remedies against judicial decisions. A **first appeal** permits examination of questions of fact and law, whereas a **second appeal** lies before the High Court only on a substantial question of law.

Reference enables a subordinate court to seek the High Court's opinion on a legal question. **Review** allows the same court to correct limited errors, while **revision** enables the High Court to correct certain jurisdictional errors committed by subordinate courts.

Thus, these provisions provide a system for correcting judicial errors while maintaining the finality of litigation.

2. EXECUTION OF DECREES

Introduction

Execution is the process by which a decree passed by a court is enforced. After obtaining a decree, the successful party, called the **decree-holder**, may apply to the court for its execution against the **judgment-debtor**.

The main provisions relating to execution are contained in **Sections 36–74 and Order XXI of the Civil Procedure Code, 1908**.

1. Transfer of Decree for Execution

The provisions relating to transfer of decrees for execution are mainly contained in **Sections 37–39 CPC**.

Normally, a decree may be executed by the court which passed it. However, it may be transferred to another competent court for execution.

Under **Section 39**, a decree may be transferred, on the application of the decree-holder, where the judgment-debtor:

- Resides, carries on business, or personally works for gain within the jurisdiction of another court;
- Has property within the jurisdiction of another court; or
- Where the decree directs the sale or delivery of immovable property situated within the jurisdiction of another court.

The purpose of transfer is to ensure effective execution of the decree.

2. Powers of Transferee Court

The court to which a decree is transferred for execution is called the **transferee court**.

Under **Section 42 CPC**, the transferee court generally has the same powers in executing the decree as if the decree had been passed by that court itself.

It can therefore take necessary steps for execution, such as:

- Attachment of property;
- Sale of attached property;
- Delivery of property; and
- Other lawful modes of execution.

The transferee court, however, cannot go beyond the decree or modify its terms.

3. Transferor Court and Executing Court

The **transferor court** is the court which originally passed the decree and transfers it to another court for execution.

The **executing court** is the court responsible for enforcing the decree. It may be:

- The court which passed the decree; or
- A transferee court to which the decree has been legally transferred.

Important Principle

An executing court cannot go behind the decree.

This means that the executing court cannot normally question the correctness or legality of the decree. Its duty is to execute the decree as it stands.

Important Case

Bhavan Vaja v. Solanki Hanuji Khodaji Mansang (1973) – The Supreme Court held that an executing court cannot go behind the decree, although it may interpret the decree where necessary for its proper execution.

4. Stay of Execution

The provisions relating to stay of execution are mainly contained in **Order XXI Rules 26–29 CPC** and other relevant provisions.

A **stay of execution** means the temporary suspension of the execution proceedings.

The court may grant a stay in appropriate circumstances, for example:

- To enable the judgment-debtor to approach the court which passed the decree;
- Where an appeal is pending and a stay order is granted;
- Where another related proceeding affects the execution of the decree.

A mere filing of an appeal does not automatically operate as a stay of execution. A specific order of stay is generally required.

The object of stay is to prevent injustice or irreparable consequences while the legal proceedings are pending.

5. Questions to be Determined by Executing Court

Section 47 CPC provides that all questions relating to:

- Execution;
- Discharge; or
- Satisfaction of the decree,

arising between the parties to the suit or their representatives, shall be determined by the **executing court** and not by a separate suit.

The purpose of Section 47 is to avoid multiplicity of proceedings and ensure speedy resolution of matters connected with execution.

Important Case

Brahmdeo Chaudhary v. Rishikesh Prasad Jaiswal (1997) – The Supreme Court explained the scope of objections and questions arising during execution proceedings.

6. Setting Aside of Judicial Sale

During execution, the property of the judgment-debtor may be attached and sold through a **court auction**, known as a judicial sale.

The provisions relating to setting aside such a sale are mainly contained in **Order XXI Rules 89, 90 and 91 CPC**.

Order XXI Rule 89

The judgment-debtor or another person having an interest in the property may apply to set aside the sale by making the required deposit, including the amount specified by law for payment to the purchaser and the decree-holder.

Order XXI Rule 90

A sale may be set aside where there has been a **material irregularity or fraud** in publishing or conducting the sale, and the applicant has suffered substantial injury because of such irregularity or fraud.

Thus, both **irregularity/fraud and substantial injury** must generally be established.

Order XXI Rule 91

The purchaser may apply to set aside the sale where the judgment-debtor had **no saleable interest** in the property sold.

Important Case

Desh Bandhu Gupta v. N.L. Anand & Rajinder Singh (1994) – The Supreme Court emphasized that judicial sales must be conducted according to the prescribed procedure and that material irregularity causing substantial injury may justify interference with the sale.

Conclusion

Execution is the final stage through which a decree-holder obtains the benefit of a court's decree. A decree may be transferred to another competent court for effective execution, and the transferee court has powers similar to those of the court which passed the decree.

The executing court determines questions relating to the execution, discharge or satisfaction of the decree under **Section 47 CPC**, but it cannot normally go behind the decree. Judicial sales may also be challenged and set aside under the appropriate provisions of **Order XXI**, particularly where the requirements relating to deposit, fraud, material irregularity or absence of saleable interest are satisfied.

3. INHERENT POWERS OF THE COURT

Introduction

The **inherent powers of the court** are those powers which are inherent in every civil court to enable it to act effectively and to do justice between the parties.

The main provision relating to inherent powers is **Section 151 of the Civil Procedure Code, 1908**.

Section 151 provides:

Nothing in the CPC shall be deemed to limit or otherwise affect the inherent power of the Court to make such orders as may be necessary for the **ends of justice** or to prevent the **abuse of the process of the Court**.

Thus, Section 151 does not create a new power; it recognizes and preserves the inherent powers already possessed by civil courts.

Meaning and Object

The CPC cannot provide a specific rule for every possible situation that may arise before a court. Therefore, where the Code is silent, the court may exercise its inherent power to ensure justice.

The two main purposes are:

1. **To secure the ends of justice;** and
2. **To prevent abuse of the process of the court.**

For example, the court may exercise inherent powers to prevent unnecessary or vexatious proceedings or to pass an appropriate order where no specific provision of the CPC applies.

Important Principles of Section 151

1. Inherent Power Cannot Override Express Provisions

The inherent powers of the court cannot be exercised in a manner contrary to an express provision of the CPC.

Where the Code specifically provides a remedy or procedure, Section 151 cannot normally be used to bypass that provision.

2. Power is Discretionary

The exercise of inherent power depends upon the facts and circumstances of each case. It must be exercised carefully and only when necessary for justice.

3. No Inherent Power Against Statute

The court cannot use Section 151 to do something which is expressly prohibited by law.

Thus, inherent powers supplement the provisions of the CPC but do not override them.

Important Uses of Inherent Powers

The court may exercise inherent powers in appropriate cases for:

- Preventing abuse of the process of the court;
- Staying proceedings where necessary in the interests of justice;
- Consolidating suits in appropriate cases;
- Recalling an order obtained by fraud or where necessary to prevent injustice;
- Correcting procedural defects where no specific provision applies; and
- Passing other necessary orders to secure the ends of justice.

Important Case Laws

Manohar Lal Chopra v. Rai Bahadur Rao Raja Seth Hiralal (1962)

The Supreme Court held that the inherent powers of the court under **Section 151 CPC** are not limited merely because a particular situation is not specifically covered by the CPC. However, such powers cannot be exercised contrary to express provisions of the Code.

Padam Sen v. State of Uttar Pradesh (1961)

The Supreme Court held that inherent powers are supplementary in nature and cannot be exercised in conflict with the provisions of the CPC.

K.K. Velusamy v. N. Palanisamy (2011)

The Supreme Court observed that Section 151 may be exercised where the CPC does not provide a specific remedy, but such power must be used cautiously and only when necessary to meet the ends of justice.

Conclusion

The inherent powers of civil courts are preserved under **Section 151 CPC**. These powers enable the court to pass necessary orders where the CPC does not provide a specific procedure.

However, inherent powers are **not unlimited**. They cannot override or conflict with any express provision of the CPC. Their primary purpose is to **secure the ends of justice and prevent abuse of the process of the court**.

UNIT – IV

LIMITATION ACT, 1963

Introduction

The **Law of Limitation** prescribes the time within which a person must approach a court or other competent authority for enforcement of a legal remedy. The principal law relating to limitation in India is the **Limitation Act, 1963**.

The object of the law of limitation is not to destroy rights, but to ensure that legal remedies are pursued within a reasonable period. It prevents stale and delayed claims and promotes certainty and finality in legal proceedings.

The important topics relating to limitation include:

1. Limitation bars the remedy but does not extinguish the right;
2. Condonation of delay;
3. Legal disability;
4. Once time has begun to run, subsequent disability cannot stop it;
5. Effect of fraud and mistake; and
6. Valid acknowledgment.

1. LIMITATION BARS THE REMEDY BUT DOES NOT EXTINGUISH THE RIGHT

Section 3 – Bar of Limitation

Under **Section 3 of the Limitation Act, 1963**, every suit, appeal or application made after the prescribed period of limitation shall be dismissed, even if limitation has not been set up as a defence.

Thus, the court has a duty to consider limitation **suo motu**, that is, even where the opposite party does not raise an objection.

The general principle of the law of limitation is:

Limitation bars the remedy, but does not ordinarily extinguish the right.

This means that after the expiry of the prescribed limitation period, the legal remedy may become barred, but the underlying right generally continues to exist.

Example

If A lends money to B and fails to file a suit for recovery within the prescribed limitation period, A's remedy of filing the suit becomes barred. However, the original debt or obligation does not automatically disappear merely because the limitation period has expired.

The distinction is important because a time-barred debt may still have legal consequences in certain situations.

Exception – Section 27

The important exception to the general rule is **Section 27 of the Limitation Act**.

Section 27 provides that at the expiry of the period prescribed for instituting a suit for possession of property, the right to such property itself may be extinguished.

Therefore:

- **General Rule:** Limitation bars the remedy.
- **Exception under Section 27:** In certain suits relating to possession of property, limitation may extinguish the right itself.

Important Case

Bombay Dying and Manufacturing Co. Ltd. v. State of Bombay (1958) – The Supreme Court recognized the general principle that the law of limitation ordinarily bars the remedy and does not destroy the substantive right, except where the statute expressly provides otherwise.

2. CONDONATION OF DELAY

The provisions relating to condonation of delay are contained mainly in **Section 5 of the Limitation Act, 1963**.

Section 5 applies to an **appeal or application**, except applications under Order XXI of the Civil Procedure Code.

Where an appeal or application is filed after the prescribed period of limitation, the court may admit it if the applicant satisfies the court that there was **sufficient cause** for not filing it within the prescribed period.

Meaning of “Sufficient Cause”

The expression “**sufficient cause**” is not precisely defined in the Act. It depends upon the facts and circumstances of each case.

The court may consider factors such as:

- Illness;
- Circumstances beyond the control of the party;
- Bona fide mistake;
- Delay caused despite reasonable diligence; or
- Other circumstances which genuinely prevented the party from approaching the court in time.

However, mere negligence, deliberate delay or lack of bona fides may not constitute sufficient cause.

Important Case

Collector, Land Acquisition v. Mst. Katiji (1987) – The Supreme Court held that courts should generally adopt a liberal approach while considering applications for condonation of delay where sufficient cause is established, so that substantial justice is not defeated merely on technical grounds.

Another Important Case

Esha Bhattacharjee v. Managing Committee of Raghunathpur Nafar Academy (2013) – The Supreme Court laid down important principles regarding condonation of delay and held that a liberal approach does not mean that negligence or deliberate inaction should automatically be excused.

Important Point

Section 5 does **not ordinarily apply to suits**. It mainly applies to appeals and specified applications.

3. LEGAL DISABILITY – SECTION 6

Section 6 deals with **legal disability**.

Where a person entitled to institute a suit or make an application is, at the time from which the prescribed period begins to run, suffering from a legal disability, the limitation period is affected according to the provisions of the Act.

The principal legal disabilities recognized under Section 6 are:

1. **Minority;**
2. **Unsoundness of mind;** and
3. Certain other disabilities recognized by the law, including situations where a person is unable to protect his legal interests because of such disability.

The essential condition is that the disability must exist **at the time when the period of limitation begins to run.**

A person suffering from such disability may institute the suit or application within the period prescribed after the disability has ceased, subject to the provisions and limitations contained in the Act.

Object of Section 6

The purpose of this provision is to protect persons who are legally incapable of effectively enforcing their rights at the time when the limitation period begins.

Example

A minor becomes entitled to institute a suit, but the limitation period begins while he is still a minor. The law provides protection by postponing or extending the period in accordance with Section 6 and the related provisions of the Act.

4. MULTIPLE DISABILITIES AND DEATH – SECTIONS 6 TO 8

The Limitation Act also contains provisions dealing with situations where more than one disability exists.

For example:

- Where a person suffers from two disabilities at the same time; or
- Where one disability is followed by another before the first disability ceases.

The Act provides rules for calculating the limitation period in such situations.

However, the protection available to a person under legal disability is subject to the limitations provided under **Section 8.**

The object is to balance two considerations:

1. Protection of persons suffering from legal disability; and
2. Prevention of indefinite postponement of legal proceedings.

5. ONCE TIME HAS BEGUN TO RUN, NO SUBSEQUENT DISABILITY CAN STOP IT

This principle is contained in **Section 9 of the Limitation Act, 1963.**

Section 9 provides:

Once time has begun to run, no subsequent disability or inability to institute a suit or make an application can stop it.

The basic principle is that the disability must exist **when the limitation period begins to run.**

If the limitation period has already started and the person subsequently becomes disabled, that subsequent disability will not suspend or stop the running of limitation.

Example

A has a right to institute a suit, and the limitation period begins while A is legally competent. After one year, A becomes mentally incapable of managing his affairs. This subsequent disability will not stop the limitation period which had already begun to run.

Reason for the Rule

The object of Section 9 is to ensure certainty in the law of limitation. Otherwise, the limitation period could be repeatedly suspended by disabilities arising after the period had already commenced.

Important Principle

Initial disability may postpone the commencement or calculation of limitation, but a subsequent disability cannot stop a period that has already started running.

6. EFFECT OF FRAUD – SECTION 17

Section 17 of the Limitation Act deals with the effect of **fraud** on the computation of the limitation period.

Where a suit or application is based upon the fraud of the defendant or where knowledge of a right or title has been concealed by fraud, the period of limitation does not begin to run until the person affected:

- Has discovered the fraud; or
- Could, with reasonable diligence, have discovered it.

The principle behind Section 17 is that:

A person who commits fraud should not be allowed to benefit from his own fraudulent conduct.

Example

A fraudulently conceals an important document from B. If B could not discover the fraud despite reasonable diligence, the period of limitation may begin from the date when B discovered, or could reasonably have discovered, the fraud.

However, the protection under Section 17 is not available indefinitely. The affected person must exercise **reasonable diligence**.

Important Case

P. Radha Bai v. P. Ashok Kumar (2019) – The Supreme Court considered the scope of Section 17 and emphasized that the provision relating to fraud must be understood in accordance with the statutory scheme applicable to the proceedings.

7. EFFECT OF MISTAKE – SECTION 17

Section 17 also applies in cases involving **mistake**.

Where a suit or application is for relief from the consequences of a mistake, the period of limitation does not begin to run until the plaintiff or applicant has discovered the mistake or could, with reasonable diligence, have discovered it.

Example

If money is paid by A to B under a genuine mistake, and A later discovers the mistake, the calculation of limitation may be affected according to Section 17.

Thus, the law recognizes that a person cannot reasonably be expected to seek a remedy for a fraud or mistake of which he had no knowledge and could not have discovered with reasonable diligence.

8. VALID ACKNOWLEDGMENT – SECTION 18

Section 18 of the Limitation Act deals with the effect of an **acknowledgment of liability**.

Where, before the expiry of the prescribed period of limitation, a person against whom a right is claimed makes a valid acknowledgment of liability in writing, a **fresh period of limitation** begins from the date on which the acknowledgment was signed.

Essential Conditions of a Valid Acknowledgment

For an acknowledgment to be valid under Section 18:

1. It must be made **before the expiry of the limitation period**;
2. It must be **in writing**;
3. It must be **signed** by the party against whom the right is claimed or by an authorized person;
4. It must acknowledge the existence of a subsisting liability or legal relationship.

The acknowledgment need not necessarily contain an express promise to pay. It is sufficient if it clearly recognizes the existence of the relevant liability.

Example

A owes money to B. Before the expiry of the limitation period, A writes and signs a letter acknowledging that the amount is due to B. A fresh period of limitation may begin from the date of such acknowledgment.

Important Case

Sampuran Singh v. Niranjan Kaur (1999) – The Supreme Court emphasized that an acknowledgment under Section 18 must be made before the expiry of the prescribed limitation period.

9. ACKNOWLEDGMENT AND PART PAYMENT

A distinction must be understood between **acknowledgment under Section 18** and **part payment under Section 19**.

Under Section 18, a fresh limitation period may begin because of a valid written and signed acknowledgment.

Under **Section 19**, part payment of a debt or interest before the expiry of the limitation period may also result in a fresh period of limitation, subject to the conditions prescribed by the Act.

Therefore, both acknowledgment and part payment can have an important effect on the computation of limitation.

IMPORTANT CASE LAWS AT A GLANCE

1. Bombay Dying and Manufacturing Co. Ltd. v. State of Bombay (1958)

The law of limitation generally bars the remedy and does not extinguish the substantive right unless the law expressly provides otherwise.

2. Collector, Land Acquisition v. Mst. Katiji (1987)

Courts should adopt a justice-oriented approach in condoning delay where sufficient cause is shown.

3. Esha Bhattacharjee v. Managing Committee of Raghunathpur Nafar Academy (2013)

Condonation of delay depends upon sufficient cause; negligence and lack of bona fides cannot be automatically excused.

4. P. Radha Bai v. P. Ashok Kumar (2019)

Important decision concerning the scope and application of Section 17 relating to fraud and limitation.

5. Sampuran Singh v. Niranjan Kaur (1999)

A valid acknowledgment under Section 18 must be made before the expiry of the original period of limitation.

QUICK REVISION TABLE

Topic	Section	Main Principle
Bar of Limitation	Section 3	Time-barred suits, appeals and applications are liable to dismissal
Right and Remedy	General Rule	Limitation generally bars remedy, not the right
Exception	Section 27	Right to property may be extinguished in specified cases

Topic	Section	Main Principle
Condonation of Delay	Section 5	Delay may be condoned on showing sufficient cause
Legal Disability	Sections 6–8	Protection to persons suffering from legal disability
Continuous Running of Time	Section 9	Subsequent disability cannot stop limitation once it has begun
Fraud and Mistake	Section 17	Limitation may begin from discovery of fraud or mistake
Acknowledgment	Section 18	Valid acknowledgment may start a fresh limitation period
Part Payment	Section 19	Part payment may also extend limitation subject to conditions

Conclusion

The Limitation Act, 1963 plays an important role in maintaining certainty and finality in legal proceedings. The general rule is that limitation **bars the remedy but does not extinguish the right**, subject to exceptions such as **Section 27**.

The Act also protects genuine cases through provisions relating to **condonation of delay, legal disability, fraud and mistake**. Further, a valid **acknowledgment made before the expiry of limitation** can give rise to a fresh period of limitation. Thus, the Act seeks to balance the need for timely litigation with the requirements of justice and fairness.

~Abhishek Chaudhary